



U.S. Department
of Transportation

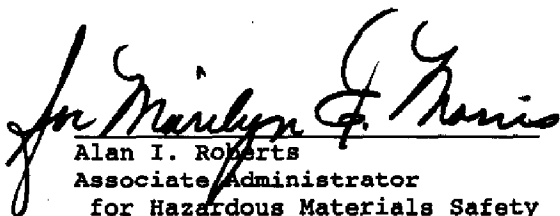
Research and
Special Programs
Administration

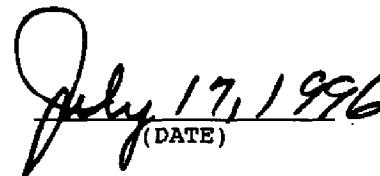
400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10344 (EXTENSION)
ORIGINAL June 1, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10344 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to May 31, 1998. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety


(DATE)

Dist: FHWA USCG

EXEMPTION HOLDER

APPLICATION DATE

U.S. Department of Defense
Falls Church, VA

March 16, 1996

Expired - No Renewal
Not Active



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Research and
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400 Seventh Street, S.W.
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DOT-E 10344

JUN 1 1990

1. Department of Defense (Defense Reutilization and Marketing Service), Battle Creek, Michigan, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of depleted lithium batteries for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of depleted lithium batteries from U.S. military bases overseas to the United States for disposal, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on an application from the Defense Reutilization and Marketing Service dated November 8, 1989, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Depleted lithium batteries containing essentially lithium metal, sulfur dioxide, acetonitrile and products formed during use of the batteries; classed as flammable solid.

4. PROPER SHIPPING NAME (49 CFR 172.101). Lithium batteries, for disposal.

5. REGULATION AFFECTED. 49 CFR 172.101 and 173.1015.

6. MODES OF TRANSPORTATION AUTHORIZED. Cargo vessel and Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is as follows:

a. Strong inner fiberboard packagings containing not more than 500 grams of lithium per package. Outer packagings must be (1) strong, wooden boxes; (2) DOT Specification 12B fiberboard boxes or equivalent; (3) DOT Specification 21C fiber drums or equivalent, or (4) DOT Specification 17H or 17C metal drums or equivalent. The packages of batteries must be loaded into freight shipping containers.

b. When metal drums are used, the inner containers must be separated from each other and from all inner surfaces of the drum by at least one inch thickness of vermiculite or other equivalent non-combustible cushioning materials.

8. SPECIAL PROVISIONS.

- a. Broken or physically damaged batteries may not be shipped under this exemption.
- b. Freight containers must be carried on deck.
- c. No batteries containing cells which, when new, contained more than 12 grams of lithium may be shipped under this exemption.
- d. No rechargeable lithium batteries may be shipped under this exemption.
- e. The depleted batteries must be packaged so as to prevent external short circuits.
- f. This exemption is not needed for batteries which, when new, were excepted from regulation under 49 CFR 173.206(f).
- g. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incidents involving loss of contents of the package or packaging failure must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. May 31, 1992.

Issued at Washington, D.C.



Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

JUN 1 1990

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: USCG, FHWA.